To: Partner Lincoln, Esq.

From: Victoria, Legal Assistant

RE: Torts of Assault and Battery in California and Possible Defenses

Introduction

This discussion analyzes whether our client has valid defenses against assault and battery claims arising from a boxing match and examines the defense of consent, arguing that Sallie Mae, consented to the physical contact by participating in the boxing match, including the punch to her stomach. The memo will assess the applicability of California tort law and relevant legal precedents to determine the strength of this defense**.**

1) Defense to Assault

The issue is whether the client can successfully raise a defense to the charge of assault when the punch to Sallie Mae's stomach occurred during a boxing match at Fun Fighting Club. Under the CACI No. 1301, CACI VF-1302, and Cal. Penal Code § 240 (West, Westlaw through Ch. 1017 of 2024 Reg.Sess.) California's tort of **assault** occurs when a person **intentionally** attempts to cause **imminent harmful or offensive contact with someone else and the victim of the assault must have reasonable apprehension that the contact was going to occur**. **Consent** is a potential defense to assault. The **Restatement (Second) of Torts** § 892A also implies that consent can negate liability for an intentional tort if the victim voluntarily agrees (consented) to the conduct that led to the harm. It also specifies that for some sports like boxing, which require physical contact, the anticipation of being hit is part of the sport's goals and the intentional tort does not apply. Here, the client and Sallie Mae participated in a boxing match at the Fun Fighting Club, which required physical contact to punch the body and is part of the sport's expectations. By voluntarily participating in the match, Sallie Mae **consented to the risks** of boxing, including being struck by her opponent in the stomach. Since boxing inherently involves physical contact and the expectation of being hit, this consent may be a valid defense to the assault claim, if Sallie Mae knew the risks and consented to this sport by participating in the match. Therefore, if Sallie Mae's **apprehension of harm** was tied to her knowing participation in a sport where contact occurs, her **consent** to the match may bar her assault claim. In conclusion, the client could raise **consent** as a valid defense to the assault claim, arguing that Sallie Mae consented to the physical contact that occurred as part of the boxing match, thus negating the claim of assault.

2) Defense to Battery

The issue is whether the client can successfully raise a defense to the charge of battery based on the punch delivered to Sallie Mae's stomach during the boxing match. Under the California Civil Jury Instruction (CACI) No. 1300, CACI VF-1300 and 1301, and Cal. Penal Code § 242 (West, Westlaw through Ch. 1017 of 2024 Reg.Sess.) California's tort of **battery** involves **intentional** and **harmful or offensive** touching of another person **without consent**. The **Restatement**

(Second) of Torts §§ 101 and 892A, also supports that **consent** to an act negates its wrongful actions and that **battery** does not occur when the contact is expected in activities like boxing since the physical contact is not excessive or outside the context goals in boxing. Here, the punch during the boxing match was within the scope of conduct in a **boxing match**, where punching strikes to the body are anticipated. Since Sallie Mae, participated in the match, this action implicitly implies **consent and acknowledgment** of the possibility of being struck in the match, such as a punch to the stomach that resulted in bruising. The boxing punching would not be considered **offensive or harmful** beyond the expectations of boxing, as it was part of the activity's scope to which Sallie Mae had consented, making it a solid defense to the battery claim. **In conclusion,** the client may claim **consent** as a defense to the battery claim in CA, arguing that Sallie Mae consented to physical contact by participating in the boxing match, where a punch to the stomach was anticipated, not offense, or harmful due to the context of the boxing sport, negating the battery claim.

Conclusion

In conclusion, for the assault and battery claims, the client's defense is based on the premise that Sallie Mae consented to engage in a boxing sport where physical contact is expected, knowing the risks involved like the punch to her stomach, and no other force was used outside of the boxing's scope. For the client, these are strong defenses based on **consent**. Therefore, the client can argue that the claims of assault and battery should be dismissed due to Sallie Mae's consent and the boxing sport's scope.

References

Cal. Penal Code § 240 (West 2024).

Cal. Penal Code § 242 (West 2024).

Cal. Penal Code § 240 (West 2024).

Cal. Penal Code § 242 (West 2024).

Cal. Civ. Jury Inst. (CACI) 1300 (2024).

Cal. Civ. Jury Inst. (CACI) 1301 (2024).

Cal. Civ. Jury Inst. (CACI) VF-1301 (2024).

Cal. Civ. Jury Inst. (CACI) VF-1300 (2024).

Cal. Civ. Jury Inst. (CACI) VF-1302 (2024).

Restatement (Second) of Torts § 101 (1965).

Restatement (Second) of Torts § 892A (1965)

Hello ,

Your post cogently explains all the possible defenses that could be applied for Sallie Mae's case and her injury of being punched in the stomach by her opponent. You have a valid point that the defenses for assault and battery are highly dependent on "consent." Your example of the *Janelsins v. Button* was insightful to allow me to see why it established that consent can be implied through actions or participation in an activity, even if it is not explicitly communicated. It makes sense that when Sallie Mae decided to join the boxing club by paying the fee and participating in the match, she implicitly consented to the possibility of being punched in the sport's objectives. Your analysis puts the key facts together that Sallie Mae should not be able to claim damages for injuries resulting from a boxing match she voluntarily participated in, which entails consent.

When comparing it to the CA's regulation on how the state handles it through laws, your post is more generic and uses precedent cases to analyze whether or not consent can be a valid defense for assault and battery. Your post provided explanations about consent as a defense, referring to the legal precedent without delving into specific details about a specific jurisdiction's tort law. In contrast, the CA jurisdiction emphasizes CACI and Penal Codes, and offers a detailed analysis of how consent applies to assault and battery claims in the context of a boxing match. CA's response also includes a more structured legal argument and outlines how the defense would hold up under California law.

One suggestion is that this post is missing details about the state jurisdiction and whether the legal principles in your post apply to the state where the case is being heard. For this case, I will assume your current jurisdiction is in Maryland, as *Janelsins v. Button* and *McQuiggan v. Boy Scouts of America* are concluded in Maryland. Since both cases align with Maryland's jurisdiction, are there any other Maryland statutes or laws defining consent as a defense to assault and battery cases to strengthen your claim with the precedent cases? Does Maryland have a specific state law on "consent" in sports, and if the state follows the same standards for implied consent in activities like boxing?

Overall, your post was insightful, allowing me to comprehend consent as a defense argument for assault and battery regarding Sallie Mae's boxing participation. This allowed consent to engage in a boxing sport where physical contact is expected, and knowing she was going to get punched in the stomach, while being within the boxing sport's scope.

Best regards,

Victoria

References

Cal. Penal Code §§ 240 & 242 (West 2024).

Cal. Civ. Jury Inst. (CACI) 1300 to 1301 (2024).

Cal. Civ. Jury Inst. (CACI) VF-1301 to 1302 (2024).

Hello,

Your post eloquently uses past precedent cases and the CA's Civil Code to analyze whether or not there are defenses for assault and battery. You have a valid point that there are strong defenses for this case because Sallie Mae willingly participated in a boxing match. For assault, you make a valid point that Sallie Mae consented to the physical contact by entering the ring and paying dues at the "Fun Fighting Club." For battery, it makes sense that Sallie assumed the risk of being hit and bruised, as these are normal parts of boxing and part of the sport's rules. This means that Sallie has consented to allow the opponent to hit her or harm her during the sport. However, this claim may be valid if the client acted recklessly or outside the rules of boxing; these defenses should hold up in court.

I can see how this correlates to California's Civil Code by using legal defenses that judges have recognized over time, as they are a set of fairness guidelines. Case law, such as *Pelletier v. Eisenberg* and *Avila v. Citrus Community College District*, establishes that voluntary participation in activities involving inherent risks, like contact sports, can limit liability for resulting injuries. This is crucial as, since Sallie Mae consented and assumed the risk, the claims are dismissed as the injuries are a normal part of the activity Sallie Mae chose to participate in, as long as the other person stayed within the normal bounds of that activity.

When comparing it to my post about CA as well, it makes sense that consent and the assumption of risk are strong defenses in this case. Since Sallie Mae's voluntary participation in a boxing match implies consent to the risks and the actions must stay within the expected scope of boxing. However, I would like to add that there are specific California Civil Jury Instructions (CACI) and the Restatement (Second) of Torts to address the elements of assault and battery under California law before applying the defenses. Your post makes it concise, while the specific version delves deeper into what defenses are considerable when analyzing this case. If possible, do you think California's system of interpreting this case is different than of Maryland's, and how so?

Overall, your post was insightful and allowed me to see other applications of CA's laws and precedent cases that correlate to the scenario. In general, I think most people would have the common sense that if you consented to a sport involving physical harm, a claim like assault or battery sounds questionable as the consent has been accepted based on participating in the sport itself.

Best regards,

Victoria

References

Cal. Penal Code §§ 240 & 242 (West 2024).

Cal. Civ. Jury Inst. (CACI) 1300 and 1301 (2024).

Cal. Civ. Jury Inst. (CACI) VF-1300 to 1302 (2024).

Restatement (Second) of Torts § 101 and 892A (1965).

Hello

Your post cogently explains all the possible defenses that could be applied for Sallie Mae's case based on the assault and battery for this week's lessons. You have a valid point that in Louisiana, if someone sues for assault or battery after a boxing match, the defense would be judged upon "consent" and accepting "risk of injury" in a boxing match. It makes sense that Sallie Mae voluntarily participated in a boxing sport for Fun Fighting Club, where the risk of harmful or offensive contact was inherent. Since both participants consented and willingly participated in a boxing match, including accepting the hits of being punched, the case for the assault liability will be dismissed since both participants followed the normal rules of the boxing sport. You also have a valid point that for the battery claim, the defense to counter it would be an assumption of risk doctrine, where a person voluntarily engages in an activity, despite knowing all the risks.

To further support your claim, under the La. Civ. Code Ann. art. (1927), it explains all the different types of consent based on the generic overview: (1) a contract is formed by the consent of the parties established through offer and acceptance; (2) unless the law prescribes a certain formality for the intended contract, offer and acceptance may be made orally, in writing, or by action or inaction that under the circumstances is clearly indicative of consent; and (3) unless otherwise specified in the offer, there need not be conformity between how the offer is made and how the acceptance is made. This Louisiana civil code implies that "consent" is made through the sport's actions taken, where boxing requires the person to consent to the risk of being punched and can punch the other participant. Additionally, under § 12:6. Battery, 12 La. Civ. L. Treatise, Tort Law § 12:6 (2d ed.) and § 12:7. Assault, 12 La. Civ. L. Treatise, Tort Law § 12:7 (2d ed.), defines the elements based on the civil tort laws. All of these additonal laws should futher support your post and define clearly why Louisain uses "consent," "assumptions of risk," and the tort (civil) laws that define the elements for a battery and assault claim.

Overall, your analysis puts the key facts together that the claim for injuries must be dismissed since both participants consented and allowed the risk of injury. It was eloquently written, which allowed me to see how Louisiana is different from how CA uses the Cal. Penal Code, Cal. Civ. Jury Inst. (CACI), and the Restatement (Second) of Torts (1965).

Best regards,

Victoria

References

Cal. Penal Code (West 2024).

Cal. Civ. Jury Inst. (CACI) (2024).

Cal. Civ. Jury Inst. (CACI) VF (2024).

La. Civ. Code Ann. art. (1927)

La. Civ. Code Ann. art. 12:6 (2d ed.).

La. Civ. Code Ann. art. 12:7 (2d ed.).

Restatement (Second) of Torts (1965).